**IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD**
**COURT - 2**

ITEM No225

**CP(CAA)/5(AHM)2022**
**in**
**C.A.(CAA)/6(AHM)2021**

**Proceedings under Section 230-232**

**IN THE MATTER OF:**

Mohit Agro Commodities Processing Pvt Ltd **.....Applicant**
Gujarat Ambuja Exports Ltd

**.....Respondent**

**Order delivered on 02/11/2022**

**Coram:**

Dr. Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

**PRESENT:**

| | |
|---|---|
| For the Applicant | : Mr, Nipun Singhvi, Adv. |
| For the Income Tax | : Ms. Kinjal Trivedi, Adv. |
| For the RD | : Mr. Liladhar Sharma, Asst. Director |

**ORDER**

Learned Asst. Director Mr. Sharma for RD appears and states that in view of explanation filed by the petitioner company, they do not have any objection. Learned Counsel Mr. Trivedi for Income Tax Department states that huge demand is pending against the transferee company. Learned Counsel Mr. Singhvi for Petitioner states that transferee company is not getting dissolved and shall continue, hence, they have given undertaking that the demand of the Income Tax Department will be paid as per law. None appears for OL.

List for final hearing on 15.11.2022.

-Sd-

**AJAI DAS MEHROTRA**
**MEMBER (TECHNICAL)**

-Sd-

**DR. DEEPTI MUKESH**
**MEMBER (JUDICIAL)**

Prakash - Steno